

59.	Flash Funding Services, Inc. v. Hellenic, Inc. 2022-01241189	Plaintiff Flash Funding Services, Inc.'s motions to compel defendant Manuel Katsivalis to (1) respond to special interrogatories, set one (ROA 78) and (2) respond to request for production, set one (ROA 74) are GRANTED. Defendant M. Katsivalis shall serve code compliant responses, without objection to the interrogatories and requests for production within 15 days of this order. Any responsive documents are also ordered produced within 15 days of this order. Plaintiff is awarded sanctions against defendant M. Katsivalis in the amount of \$980.00 for each motion, totaling \$1960. Sanctions are payable to plaintiff through its attorney within 30 days of this order. Plaintiff shall give notice.
60.	Best Wheels and Tire, LLC v. Liquid Metal Motorsports, Inc. 2022-01288714	The motion by cross-defendants Best Wheel and Tires, LLC [BWT], Ernie Alfonso, Robert Batchelor and Diamond Auto Industries Corporation [Diamond] for judgment on the pleadings as to the cross-complaint by Liquid Metal Motorsports, Inc. [LMM] and James Owen is GRANTED in part, with leave to amend, and DENIED in part. (Code Civ. Proc., § 438 [authorizing motion].) Moving parties' request for judicial notice is GRANTED in part, in that the court takes judicial notice of the fact that the documents were filed with the respective government agencies, but not of the truth of their contents. (<i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 607-608.) The motion is GRANTED as to cross-defendant Diamond entirely, on grounds of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 438, subd. (c)(1)(B)(2).) The only basis of liability alleged as to this cross-defendant is as alter ego of cross-defendant BWT; however, alter ego is alleged as a conclusion only at ¶ 6, without sufficient supporting facts. (<i>Robbins v. Blecher</i> (1996) 52 Cal.App.4th 886, 892 [alter ego elements]; <i>Associated</i>

		<i>Vendors, Inc. v. Oakland Meat Co.</i> (1962) 210 Cal.App.2d 825, 839-840 [alter ego factors].) The motion is also GRANTED as to the 2nd and 7th causes of action for unjust enrichment, on grounds of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 438, subd. (c)(1)(B)(2).) There is no cause of action for unjust enrichment in California. (<i>Melchior v. New Line Productions, Inc.</i> (2003) 106 Cal.App.4th 779, 794; <i>Levine v. Blue Shield of California</i> (2010) 189 Cal.App.4th 1117, 1138; <i>Durell v. Sharp Healthcare</i> (2010) 183 Cal.App.4th 1350, 1370.) The motion is further GRANTED as to the 4th and 9th causes of action for breach of the implied covenant of good faith and fair dealing. These causes of action are based on the same facts as the breach of contract claims, and seek the same damages. (Cross-complaint at ¶¶ 65-67, 98-100.) "If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated." (<i>Careau & Co. v. Security Pacific Business Credit, Inc.</i> (1990) 222 Cal.App.3d 1371, 1395; see also <i>Couch v. San Juan Unified School Dist.</i> (1995) 33 Cal.App.4th 1491, 1504 [duplicative claims subject to demurrer].) The remainder of the motion is DENIED. While moving parties contend that cross-complainant LMM is not a party to the alleged joint venture to "build the 'Wicked Wheels' brand together" (Cross-complaint, ¶ 20), and that the alleged joint venture is insufficiently alleged, the alleged joint venture is not the only agreement alleged by cross-complainants. (Cross-complaint, ¶ 24 [alleging a "Mold Agreement"], ¶ 29 [alleging an oral agreement whereby "BWT, Alfonso, and Batchelor agreed to pay Liquid Metal the total costs for PDW to manufacture the 'Wicked Wheels' branded alloy wheels, plus Twelve and 00/100 Dollars (\$12.00) per wheel, in addition to ocean freight, taxes, import duties, and tariffs"].) Thus, whether the joint venture is sufficiently alleged, as to LMM or generally, would not dispose of the challenged claims in their entirety. (<i>Fremont Indemnity Co. v. Fremont General Corp.</i> (2007) 148 Cal.App.4th 97, 119 ["A demurrer must
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		dispose of an entire cause of action to be sustained”]; <i>Quelimane Co. v. Stewart Title Guaranty Co.</i> (1998) 19 Cal.4th 26, 38 [complaint is good against a general demurrer so long as some valid cause of action is alleged]; see also <i>Cloud v. Northrop Grumman Corp.</i> (1998) 67 Cal.App.4th 995, 999 [rules governing demurrers applicable to motions for judgment on the pleadings].) Similarly, as to the 1st and 6th causes of action for breach of contract, even if the alleged loaned funds and/or any alleged obligation to purchase inventory held in China required a written contract (Civ. Code, § 1624, subd. (a)(7); Comm. Code, § 2201, subd. (1)), they are not the only obligations alleged as grounds for the breach of contract claims. Further, there are no allegations that cross-complainants are “engaged in the business of lending or arranging for the lending of money or extending credit.” (Civ. Code, § 1624, subd. (a)(7).) Likewise, while moving parties contend that the 1st and 6th causes of action are time-barred because cross-complainants were on inquiry notice of the financial condition of the joint venture by virtue of their rights and obligations as members of the joint venture, the joint venture agreement “to build the Wicked Wheels brand” (§ 20) is not the only verbal agreement alleged. Further, any timeliness defect “must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.” (<i>Committee for Green Foothills v. Santa Clara County Bd. of Supervisors</i> (2010) 48 Cal.4th 32, 42.) Here, the facts alleged do not “clearly and affirmatively” show that cross-complainants were on inquiry notice of alleged breach of the joint venture agreement. Cross-complainants are granted 30 days leave to amend. (Code Civ. Proc., § 438, subd. (h)(2).) As to the unjust enrichment claims, leave to amend is limited to alleging restitution as a remedy in connection with another, valid cause of action. Moving parties shall give notice.
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